

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index No. 516468/2017
MIGUEL AGOSTO, Law Dept. #: 2017-049938

Plaintiff,

-against-

SECOND AMENDED SUMMONS

POLICE OFFICER MANUEL MARIA:
SHIELD NO. 4562, POLICE
OFFICER GAETJEANS DOXY: SHIELD
NO. 13488, LIEUTENANT MIGUEL
FIGUEROA, AND "JANE AND JOHN"
UNKNOWN NYPD OFFICERS.Defendants.
-----X

THE PLAINTIFF DESIGNATES KINGS COUNTY AS THE PLACE OF TRIAL.

THE BASIS OF THE VENUE IS THE PLACE OF OCCURRENCE.

THE PLAINTIFF RESIDES AT 2949 23RD STREET, BROOKLYN, NY 11224.*To the above named Defendant(S):*

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: 12/23/2020Brooklyn, New YorkDa'Tekena Barango-Tariach, Esq.
Attorney for Plaintiff
25 Bond StreetBrooklyn, NY 11201
(718) 625 4200Defendant Address:
2860 West 23rd Street
Brooklyn, NY 11224

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COUNTY OF KINGS

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Dated: 12/23/2020
Brooklyn, New York

Da'Tekena Barango-Tariah Esq.
Attorney for Plaintiff
25 Bond Street

Brooklyn, NY 11201
(718) 625 4200

Defendant Address:
34-16 Astoria Blvd S
Astoria, NY 11103

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No. 516468/2017

MIGUEL AGOSTO

Plaintiff,

-against-

**SECOND AMENDED
COMPLAINT**

POLICE OFFICER MANUEL MARIA:
SHIELD NO. 4562 , POLICE OFFICER
GAETJEANS DOXY: SHIELD NO. 13488,
LIEUTENANT MIGUEL FIGUEROA, AND
“JANE AND JOHN DOE” UNKNOWN NYPD
OFFICERS

JURY TRIAL
DEMANDED

Defendants.

INTRODUCTION STATEMENT

1. This is a civil action seeking to redress violations of plaintiff's rights under the Constitution and laws of the United States for defendants' conduct in falsely arresting, and unreasonably searching him.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C.A. sections 1983 and 1988 and the Equal Protection clause and the 4th Amendment to the United States Constitution.

PARTIES

3. Plaintiff is a resident of Brooklyn, New York. At the time of the event alleged, he resided in the city of Brooklyn in Kings County in the state of New York.
4. The defendant, Police Officer Manuel Maria: Shield No. 4562 at all times relevant to this action, was an officer of the City of New York Police Department, and acted under color of state law. Said officer is being sued in both his individual and official capacities.
5. The defendant, Police Officer Gaetjeans Doxy: Shield No. 13488 at all times relevant to this action, was an officer of the City of New York Police Department, and acted under color of state law. Said officer is being sued in both his individual and official capacities.

6. The defendant, Lieutenant Miguel Figueroa at all times relevant to this action, was an officer of the City of New York Police Department, and acted under color of state law. Said officer is being sued in both his individual and official capacities.
7. Defendants "Jane and John Doe" unknown New York Police Department officers, at all times relevant to this action, were officers of the City of New York Police Department, and acted under color of state law. Said officers are being sued in both their individual and official capacities.

FACTUAL ALLEGATIONS

8. On September 4, 2014, at about 4:30 p.m., the plaintiff was a passenger in a vehicle that was pulled over at gun point by officers of the NYPD, including defendant Police Officer Manuel Maria, in Coney Island, Brooklyn, New York.
9. Plaintiff and the three other occupants of the vehicle were handcuffed, and asked to lie down on the floor for about 40 minutes.
10. The occupants of the vehicle, including the plaintiff were then taken to the PAS 1 Housing Complex Precinct, on 29th Street and Surf, in Coney Island, where plaintiff was strip searched.
11. Plaintiff was detained in the precinct for about 5 hours, and then was released, after the handcuffs had lacerated him on his left wrist, which developed into a permanent mark on his wrist.
12. As a direct and proximate result of the conduct of the defendants, the plaintiff had suffered, and continues to suffer mental and emotional distress, injury to health, well-being and feelings.

AS A FIRST CAUSE OF ACTION:

False Arrest Against all Defendants

13. Plaintiff hereby restates paragraphs 1-12 of this Complaint, as though fully set forth below.
14. Defendants, as agents of the City of New York, violated plaintiff's rights under the Fourth Amendment and 42 U.S.C.A. Section 1983 by falsely arresting him.

AS A SECOND CAUSE OF ACTION:
Unlawful Search Against all Defendants

15. Plaintiff hereby restates paragraphs 1-14 of this Complaint, as though fully set forth below.
16. Defendants, as agents of the City of New York, violated plaintiff's rights under the 4th Amendment of the U.S. Constitution by unreasonably strip searching him, thereby invading his privacy.

WHEREFORE, Plaintiff respectfully requests judgment against the defendants as follows:

- a. Compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs; and
- b. Such other and further relief as may be just and proper.

Dated: Brooklyn, New York
December 23, 2020

Respectfully submitted,



Da'Tekena Barango-Tariah, Esq.
25 Bond Street, 2nd Floor
Brooklyn, New York 11201
(718) 625 4200

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Plaintiff,

-against-

SECOND AMENDED COMPLAINT

POLICE OFFICER MANUEL MARIA:
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OFFICER GAETJEANS DOXY: SHIELD
NO. 13488, LIEUTENANT MIGUEL
FIGUEROA, AND "JANE AND JOHN"
UNKNOWN NYPD OFFICERS.

Defendants.

-----X

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Da'Tekena Barango-Tariah, Esq.

Attorney for Plaintiff

25 Bond Street, 2nd Floor

Brooklyn, New York 11201

718 625 4200

=====

Take Notice that the attached is a true copy of a Judgment duly entered
in the office of the clerk of the within named court on _____

STATE OF NEW YORK, COUNTY OF KINGS ss:

I _____, say, under penalty of perjury, I am not a party to
the action, that I reside at Brooklyn, New York, and I am over the age of 18 years of
age and on _____, I served a copy of the attached _____ by mailing the
same in a sealed envelope, with postage prepaid therein, in a post-office of official
depository of the defendants' attorneys at: